

IN THE SUPREME COURT OF INDIA

MOHD. MUSLIM @ HUSSAIN v. STATE (NCT OF DELHI)

Citation: 2023 SCC OnLine SC 352 | Neutral Citation: 2023 INSC 308
Bench: Hon'ble Justice S. Ravindra Bhat & Hon'ble Justice Dipankar Datta
Date of Judgment: March 28, 2023

JUDGMENT & LEGAL PRINCIPLES

This appeal by special leave addresses the fundamental tension between the statutory bail restrictions under Section 37 of the Narcotic Drugs and Psychotropic Substances Act, 1985 (NDPS Act) and the constitutional mandate of the Right to a Speedy Trial guaranteed under Article 21 of the Constitution of India.

FACTUAL BACKGROUND

The appellant Mohd. Muslim @ Hussain was arrested in connection with an alleged offense under the NDPS Act and remained incarcerated as an undertrial prisoner for over seven years. The trial proceeded at an exceptionally slow pace, with several witnesses remaining unexamined over many years.

RATIO DECIDENDI & COURT FINDINGS

- Section 37 NDPS Act & Prima Facie Determination:** The Supreme Court held that the statutory twin conditions under Section 37—requiring satisfaction that the accused is 'not guilty'—must be given a reasonable interpretation. A court considering bail cannot demand definitive proof of innocence, but rather a reasonable prima facie assessment of the evidence.
- Constitutional Primacy of Article 21:** The Court unequivocally ruled that statutory restrictions on bail, no matter how stringent, cannot override the constitutional right to a speedy trial under Article 21. Prolonged pre-trial detention without prospective conclusion of trial constitutes a violation of liberty.
- Obligation of the State:** When the legislature enacts harsh laws restricting bail to protect societal interests, a corresponding obligation rests on the State and the judicial machinery to ensure expeditious trial completion.

ORDER & DISPOSITION

The Supreme Court set aside the order of the High Court, allowed the appeal, and granted bail to the appellant subject to terms and conditions set by the trial court.